Superfund at 44: A Policy Puzzle of Environmental Persistence

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I. Introduction

Over the past forty-four years, Congress has slowly authorized the expansion of the Comprehensive Environmental Response, Compensation, and Liability Act of 1980 (CERCLA). Initially, passing CERCLA, colloquially known as the 'Superfund Act,' or just 'Superfund,' was not a simple feat. But following Superfund's passage in 1980, federal authority has not retrenched or diminished—rather it has grown and extended.

Today, the Superfund Act's size and reach are staggering. The Environmental Protection Agency (EPA) maintains a National Priorities List (NPL), which records the sites requiring intervention and clean-up assistance. The most recent example of the Superfund's expansion is the Biden Administration's Bipartisan Infrastructure Law, which invested $3.5 billion into "environmental remediation" at NPL sites and reinstated Superfund chemical taxes, looking to address "legacy pollution."[1] Since the NPL's creation in the early 1980s, the EPA has added approximately 1,340 sites, of which only 458 have been successfully remediated—a seemingly mere 25 percent. Therefore, at first glance, it may seem that the EPA has been ineffective and slow-moving in its cleanup efforts. However, the program's scope has consistently expanded since the Act's initial passage; thus, sites are continuously added to the EPA's workload, which, instead of reflecting the EPA's incompetence, perhaps are more reflective of the persistent and ever-emerging environmental challenges that plague the US.

CERCLA's passage and expansion do not result from long-term bipartisan compromise; instead, they reflect one set of interests prevailing over the other. As with most legislation, many groups opposed CERCLA's passage—while environmentalists and others led advocacy efforts for CERCLA's expansion, chemical companies, land developers, and politicians aligned with these corporate interests opposed the Act. In particular, chemical and business interests and related coalitions did not like the increased regulation and taxation schemes Congress proposed in the Act. Conversely, many groups supported the passage of the legislation—for example, environmentalists, groups affected by toxic chemical spills, and other related coalitions. Ultimately, groups on both sides of the issue were unhappy with the provisions in the bill.[2] Yet, there was a sense that any action was better than none and that the legislation could be improved over time through compromise.[3] Why have the pro-CERCLA interests prevailed in the long term? Ultimately, Superfund's expansion can be attributed to a persistent coalition of pro-environmental interests. With that said, expansionary efforts have not been as extreme as pro-environmentalists may have liked—opposition groups consistently provided enough resistance to moderate these activists' desires for increased regulatory and liability schemes.

The Superfund's Origins

The idea for the Superfund Act was born in the late 1970s, when media stories about a growing prevalence of unexplained rashes, coughs, and birth defects in residential areas around Love Canal, New York, sparked outrage and hysteria in the United States. Allegedly, the Hooker Chemical Company was clandestinely using the Canal as a "municipal and industrial chemical dumpsite" for decades.[4] The public panicked and worried about other secret and potentially hazardous chemical waste sites. Seeing an opportunity to capitalize on the public's hysteria and growing interest in legislative solutions to such chemical risks, environmentalists and sympathizing politicians referred to chemical dump sites such as Love Canal as "ticking time bombs," which did nothing to assuage people's worries.[5] As a result, then president Jimmy Carter declared a state of emergency at

1 Environmental Protection Agency, "Superfund Accomplishments Quarterly Report - Fiscal Year 2024," US EPA, September 19, 2024, https://www.epa.gov/superfund/superfund-accomplishments-quarterly-report-fiscal-year-2024.
2 Cartwright, Martina E. "Superfund: It's No Longer Super and It Isn't Much of a Fund." Tulane Environmental Law Journal 18, no. 2 (2005): 299–322. http://www.jstor.org/stable/43292807.
3 Congressional Quarterly Inc., "Congress Clears 'Superfund' Legislation," in CQ Almanac 1980, 36th ed. (Washington, D.C.: Congressional Quarterly Inc., 1981), 584–593.
4 Environmental Protection Agency, "The Love Canal Tragedy," US EPA, accessed November 22, 2024, https://www.epa.gov/archive/epa/aboutepa/love-canal-tragedy.html.
5 Richard Stroup, "Superfund: The Shortcut That Failed," PERC, May 1, 1996, https://www.perc.org/1996/05/01/superfund-the-shortcut-that-failed/.

inadequate laws to clean up chemical spills.[1] Thus, to demonstrate a sense of control over the situation, President Jimmy Carter used the Love Canal disaster as a focusing event to propose CERCLA, which created an emergency $1.6 billion "superfund" to address similar chemical spills. The House and Senate officially enacted the Superfund Act on December 11, 1980.

Generally, Superfund established liability schemes to establish responsibility among polluters, granted greater authority over environmental cleanups to the federal government, and, controversially, specified the lack of compensation for chemical spill victims.[2] In a significant victory for the pro-environmentalism coalition, the "polluter pays" principle, which placed the financial burden of cleanup efforts on industries responsible for contamination rather than taxpayers, was central to CERCLA. In this vein, the Act also established liability schemes for Potentially Responsible Parties (PRPs), which would be responsible for cleanup, natural resource damage, and health assessment costs (but not any resulting medical complications).[3] Furthermore, the Act granted the White House the authority to order a company to remove and control hazardous substances that threatened public interest or to order any emergency cleanup actions deemed necessary.[4] With that said, the Act's opponents ensured that CERCLA did not mandate the provision of financial compensation to victims of chemical spills.[5] Instead, legislators encouraged victims to initiate private lawsuits against the responsible parties. [6]

During the Act's initial passage, environmentalists and the chemical industry profoundly disagreed about the amount of funding necessary for such a superfund.[7] In the end, the Act mandated the creation of a five-year tax on the chemical and petroleum industries.[8] Finally, the Act created the National Priority List (NPL), for which the EPA was tasked with finding four hundred sites in the first five years of implementation.[9] The EPA prioritized hazardous waste sites on the NPL and allocated funding for cleanup.[10]

II. Legislative History: The Expansion & Retrenchment of Superfund's Powers[11]

Expansion[12]

Year	Act	Extent of Change
1982	Selection of Hazardous Waste Sites for Superfund Funding	Significant
1984	Hazardous and Solid Waste Amendments	Fair
1986	Superfund Amendments and Reauthorization Act	Very significant
1990	Extension of Superfund Taxes	Fair
1994	Brownfields Action Agenda	Significant
1997	Brownfields National Partnership Launched	Fair
1999	Superfund Redevelopment Initiative Announced	Significant
2002	CERCLA-Amended Brownfields Law Passed	Very Significant
2009	American Recovery and Reinvestment Act	Fair
2010	Environmental Workforce Development and Job Training Program	Fair
2017	Brownfields Initiative Reauthorized	Fair
2022	Inflation Reduction Act	Significant

Stasis and Retrenchment[13]

Year	Act	Extent of Change
1995	Superfund Amendments and Reauthorization Act	Very Significant
1996	GOP Scraps Superfund Plans	Fair
1997	Partisan fights stall Superfund progress	Fair
1999	Partisan fights stall Superfund progress	Fair
2013	GOP environmental riders stall Superfund Progress	Significant

1 Ibid.
2 Ibid.
3 Ibid.
4 "Congress Clears 'Superfund' Legislation." In CQ Almanac 1980, 36th ed., 584–93.
5 Ibid.
6 Ibid.
7 "Congress Clears 'Superfund' Legislation." In CQ Almanac 1980, 36th ed., 584–93.
8 James Bovard, "The Real Superfund Scandal" (CATO Institute, August 14, 1987), https://www.cato.org/policy-analysis/real-superfund-scandal.
9 Environmental Protection Agency, "Current NPL Updates."
10 Ibid.
11 Given that nearly forty-five years have passed since the Act's initial passage, Superfund has been amended far more than can be addressed in this paper. Therefore, this section will observe how Congress has grown or diminished CERCLA's authority since 1980 and present additional background information on Superfund's significant amendments and initiatives.
12 Since the Superfund Act's inception, amendments to CERCLA have primarily expanded it. This paper categorizes types of reform into levels of expansion: 'fair,' 'significant,' and 'very significant'. While expansions categorized as 'fair' caused minor adjustments or funding increases to maintain the program, expansions categorized as 'significant' or 'very significant' introduced broader regulatory authority or more significant financial commitments. The distinction between programs categorized as 'significant' and 'very significant' lies in the magnitude of the bill—for instance, the Superfund Amendments and Reauthorization Act of 1986 is categorized as 'very significant' because of its sheer scope, even if similar changes to CERCLA have been made since in more minor amendments. These distinctions provide a framework to explore why the retrenchment of the Superfund Act's powers has been minimal despite the presence of coalitions that should have a vested interest in the Act's retrenchment. This paper will examine the hearings conducted for amendments and acts categorized as 'significant' and 'very significant'. The assumption is that the interest groups present at such hearings represent the interests that shaped these expansions. This is a fair assumption, given that Congress generally calls upon a wide range of witnesses to attend such hearings.
13 Over the years, advocates for the Superfund Act have made slow and steady progress. But policy stasis and retrenchment has occurred over the years. This paper categorizes moments of retrenchment and stasis using the scale of 'fair', 'significant', and 'very significant' introduced earlier. 'Fair' indicates that very minimal stasis occurred. 'Significant' indicates stasis or mild retrenchment to a somewhat greater degree. Moments categorized as 'very significant' constituted an explicit retrenchment of authority or funding that reversed or cut short previous progress.

III. Interest Group Involvement

Based on the previously established timeline, this paper categorizes amendments and initiatives into three primary eras: the initial amendments and reauthorization (1982–1992), the retrenchment era (1992–2002), and more recent expansions (2002–present).

Initial Legislation and Early Amendments (1980–1992): The Superfund Amendments and Reauthorization Act (SARA) of 1986

A pivotal moment in CERCLA's legislative history was Congress's passage of the Superfund Amendments and Reauthorization Act (SARA) in 1986. In the face of criticism of the EPA's bureaucratic and slow processes, Congress authorized SARA to address key deficiencies in the Superfund Act. Perhaps most importantly, SARA clarified liability for PRPs, establishing retroactive liability.[1] SARA also increased available federal funds to 8.5 billion dollars to address the NPL.[2] In addition, through SARA, Congress mandated stringent standards for cleanups and formally established the importance of long-term solutions over temporary fixes.[3] In doing so, Congress moved beyond seeing CERCLA as a temporary, reactive Act in response to the Love Canal disaster, and instead, Superfund was set up to have an impact for many years to come.

Some early coalitions emerged at the 1985 SARA hearings: federal agency advocates, state and local government advocates, industry and legal representatives, and environmental and public health advocates.

Federal agency advocates included representatives from the EPA, the Department of Justice, the Navy, and the Agency for Toxic Substances and Disease Registry (ATSDR). These speakers primarily testified defending the existing liability frameworks—specifically the joint and several liability schemes—and advocating for strengthened enforcement mechanisms.[4] Their testimonies highlighted the importance of balancing work in three areas: operational efficiency, public health, and compliance.[5]

State and local government representatives—employees of state-level waste management or environmental agencies—advocated for increased state-level authority, funding, and cleanup flexibility.[6] State representatives also emphasized successful local cleanup efforts that ran more smoothly and efficiently than federal efforts due to the smaller scale of such programs.[7]

Industry interests and their legal representatives predictably sought severe reforms to the Superfund's liability frameworks, emphasizing the importance of fairness, cost efficiency, and reducing litigation burdens.[8] These advocates also pushed for incentives for voluntary cleanup programs and risk-based remediation standards.[9] Some groups at the hearings include the American Petroleum Institute, Asarco, the American Insurance Association, the National Association of Manufacturers, and the Superfund Coalition Against Mismanagement. These groups argued that streamlined cleanup processes and reduced liability schemes would increase economic growth.[10] This demonstrates early industry opposition to the Superfund's expansion.

Environmental protection and public health advocates presented overlapping arguments supporting the Superfund Act's expansion. Playing to their respective fields of expertise, public health advocates focused on rationalizing why the Act was necessary, while environmental advocates focused on how the Act would be implemented. Both groups spoke of the importance of maintaining the "polluter pays" principle, high cleanup standards, and robust public health protections.[11] Such advocates included public citizens, like Janet Hathaway, who opposed liability reforms advocated for by industry interests, and more established groups, such as the North Baton Rouge Environmental Association or Friends of the Earth. These testimonies demonstrate the early mobilization of the pro-expansion coalition that was crucial to the initial passage of Superfund, long before the Act was expanded. Their collaboration continues at later hearings and moments of expansion. Together, this coalition framed CERCLA not as a burden but as a necessary tool to address environmentally hazardous sites.

Overall, there was a critical dynamic at play in the 1986 SARA hearings: environmental and federal coalitions framed CERCLA's liability schemes as essential for accountability, while industry interests in opposition, though strong, focused on reform of CERCLA's existing frameworks rather than arguing for an outright dismantling of the program. Such a focus on moderation rather than obstruction likely enabled CERCLA's expansion.

1 Ibid.
2 Congressional Quarterly Inc., "Congress Clears 'Superfund' Legislation," 584–593.
3 James Bovard, "The Real Superfund Scandal," Cato Institute, August 14, 1987, https://www.cato.org/policy-analysis/real-superfund-scand
4 U.S. Congress. House. Committee on the Judiciary. Superfund Reauthorization: Judicial and Legal Issues. Oversight Hearings before the Subcommittee on Administrative Law and Governmental Relations of the Committee on the Judiciary. 99th Congress, 1st Session, July 17 and 18, 1985. Washington: U.S. Government Printing Office, 1985.
5 Ibid.
6 Ibid.
7 Ibid.
8 Ibid.
9 Ibid.
10 Ibid.
11 Congressional Quarterly Inc., "Congress Clears 'Superfund' Legislation," 584–593.

Retrenchment and Opposition (1992–2002): SARA of 1995

The Superfund Amendments and Reauthorization Act of 1995 was a moment of moderate expansion and some retrenchment for CERCLA. In some ways, this reflected shifting political dynamics in Congress, which favored regulatory reform and cost-cutting measures. Congress allowed the Superfund tax to expire in 1995, leaving the EPA reliant on appropriations from the general Congressional fund.[12] These reforms streamlined the EPA's processes and created more transparency around the cleanup processes. They also introduced mechanisms for more substantial stakeholder engagement.[13]

Between 1985 and 1995, the interest groups at the Superfund hearings remained largely the same. But, industry groups capitalized on the so-called "Republican Revolution" of 1994 to achieve modest policy retrenchment.[14] Specifically, the Superfund tax was allowed to expire.[15] Five primary coalitions and interest groups spoke at the hearings for SARA: federal officials, state and local officials, industry and legal representatives, environmental and public health advocates, and academics and experts.

Federal officials generally sought to defend the existing Superfund Act legislation and advocated for expansion and increased authority while supporting targeted efficiency and cost-reduction reforms. For example, Thomas Grumbly of the Department of Energy highlighted the inefficiencies and high costs of activities mandated in the Superfund Act, particularly at federal facilities.[16] He also advocated for greater standardization of cleanup criteria and emphasized the importance of innovation and community involvement to achieve the most cost-effective solutions.[17] Lois Schiffer of the Department of Justice's Environment and Natural Resources Division defended the controversial "polluter pays" principle, emphasizing the importance of holding polluting corporations liable for their action and not placing the burden on taxpayers.[18] In addition, a former EPA administrator, Mary Nichols, acknowledged the need for increased administrative reform and efficiency but highlighted the program's success in reducing public health risks and vehemently opposed liability reductions.[19]

State and local government leadership advocated for increased liability protections and federal funding to grant more significant control over Superfund cleanups to the states and municipalities. Overall, these speakers emphasized the ability of non-federal government officials to achieve efficient and cost-effective outcomes by drawing upon local expertise when addressing contaminated sites.[20] State officials from New Jersey, Massachusetts, Michigan, California, and Pennsylvania highlighted the inefficiencies created by federal oversight. Amongst the state and local leaders, there was some disagreement on the retrospective liability schemes—some merely called for increased clarity regarding liability standards, while others explicitly advocated the retrospective liability system's removal.[21] In addition, local elected officials such as Robert Varney of New Hampshire, Susan Thornton of Colorado, and John Weichsel of Connecticut criticized the complexity of Superfund regulations, arguing that such legislation unnecessarily burdened municipalities and highlighted successful local cleanup efforts.[22]

Industry representatives and their legal representatives primarily focused their testimony on liability reforms, voluntary cleanups, and streamlined processes to reduce litigation costs. Speakers of note include Roger Ferland, an attorney for the National Association of Manufacturers; Robert Roberts, the President of the National Mining Association; and Stephen Harper, the Director of Government Affairs at Intel Corporation.[23] Ferland's testimony criticized the liability frameworks, called for equitable cost-sharing schemes, and advocated for increased voluntary cleanup incentives.[24] Roberts, too, advocated for voluntary cleanup effort incentives, criticized the liability rules, and highlighted industry investments in remediation technologies. Harper echoed criticisms of liability schemes and called for reform, highlighting the inefficiencies of the bureaucratic process.[25]

In contrast, environmental and public health advocates focused their testimonies on the public health risks posed by Superfund sites. They strongly opposed any reduction in liability reforms so as not to reduce accountability for polluters.[26] In many cases, such advocates emphasized the importance of increasing funding to conduct additional

12 Cartwright, "Superfund: It's No Longer Super," 299–322.
13 Ibid.
14 Congressional Quarterly Inc., CQ Almanac 1994: 104th Congress, First Session (Washington, D.C.: Congressional Quarterly Inc., 1995), 1–4.
15 Ibid.
16 U.S. Congress. House. Committee on Transportation and Infrastructure. Superfund Reauthorization: Hearings before the Subcommittee on Water Resources and Environment. 104th Congress, 1st Session, June 13, 20, 21, 22, 27, and July 11, 1995. Washington: U.S. Government Printing Office, 1996.
17 Ibid.
18 Ibid.
19 Ibid.
20 Ibid.
21 Ibid.
22 Ibid.
23 Ibid.
24 Ibid.
25 Ibid.
26 Ibid.

research into the adverse effects of toxic chemicals. They criticized the Superfund risk standards as too relaxed. Within this coalition were representatives of environmental activist groups like the Environmental Defense Fund and Friends of Earth.[1]

Finally, academic experts also presented arguments, though their testimonies mostly aligned with those of the environmental and public health advocates. For example, Professor Bruce Ames of the University of California, Berkeley, criticized the EPA for being overly conservative in its risk assessments and argued for more explicit cleanup standards based on real-world exposure scenarios.[2] Furthermore, Dr Paul Locke, an environmental health expert from Johns Hopkins University, highlighted the need for more research-based policy decisions and criticized inconsistent risk standards in the Superfund cleanups.[3]

Though the 1995 hearings marked a rare retrenchment moment, industry groups leveraged favorable political conditions to undermine CERCLA's funding mechanisms and the fundamental "polluter pays principle." However, CERCLA's core frameworks remained intact, underscoring the strength of the pro-expansion coalition's advocacy.

Brownfields and Redevelopment (2002–2020): The Brownfields Initiative of 2002

The Brownfields Initiative of 2002 was another significant moment of legislative expansion. With that said, the Initiative constituted a legislative victory for industry interests because it created incentives for voluntary cleanups and provided increased liability protections for potential developers.[4] Brownfields, abandoned or non-used industrial properties with unknown levels of chemical contamination, were not mentioned in the original Superfund Act.[5] As such, due to the stringent liability schemes established in the 1990s, developers shied away from purchasing or cleaning up such plots of land, fearful of legal responsibilities under CERCLA. Most brownfields were located in urban areas in economic decline.[6] In this way, this initiative reflected a shift toward economic redevelopment beyond Superfund's original goals of environmental remediation.

The Brownfields Revitalization and Environmental Restoration Act hearing in 2000 was much smaller than the two SARA hearings and was focused on smaller-scale contamination in more urban settings. Four primary interests presented testimonies: federal officials, state and local government officials, environmental and conservation activists, and industry representatives.

Timothy Fields of the EPA's Office of Solid Waste and Emergency Response represented the Clinton Administration's perspective that prioritized targeted brownfield cleanup but opposed comprehensive Superfund reform.[7] Furthermore, Fields defended the existing EPA reforms and emphasized the importance of federal oversight. He also called for additional funding support, given the expiry of the Superfund Tax in 1995.[8] Perhaps most significantly, Fields supported increased State voluntary cleanup programs, though he did caveat this by advocating for federal oversight to remain in place.[9]

State and local officials were represented by Jan Reitsma of the Rhode Island Department of Environmental Management, Mayor Christian Bollwage of New Jersey, and Mayor Preston Daniels of Iowa. Together, Reitsma, Bollwage, and Daniels presented the economic and community benefits of redeveloping brownfields.[10] Their testimony included themes familiar from the 1985 hearings, including the need for greater liability protections and federal funding.[11] As a coalition, state and local officials collaborated to present a successful case for increased funding through the Brownfields Initiative.

Environmental advocates largely maintained consistent positions with those of advocates in the 1985 hearings. Predictably, these advocates largely supported the Brownfields Initiative and dedicated much of their testimonies to painting the bill as balanced and thorough.[12]

The most significant difference in perspective was that of the industry representatives. These advocates focused their arguments on redevelopment and urban renewal, though they emphasized the importance of liability protection and clarity in regulations.[13] Rather than reducing retrospective liability schemes, the speakers focused on the need for legal finality to mitigate financial risk and encourage long-term economic growth.[14] In some ways, this reflects the Superfund program's evolution. When it was initially created, it focused on large-scale hazardous waste sites. But over time, it focused more

1 Ibid.
2 Ibid.
3 Ibid.
4 Ibid.
5 Environmental Protection Agency, "Brownfields Success Stories," US EPA, https://www.epa.gov/brownfields.
6 "Brownfields Legislation and Related Programs," CQ Almanac 1994.
7 U.S. Senate. Committee on Environment and Public Works. Superfund Program: Status of Cleanup Efforts: Hearing before the Subcommittee on Superfund, Waste Control, and Risk Assessment. 106th Congress, 2nd Session, March 21, 2000. Washington: U.S. Government Printing Office, 2001.
8 Ibid.
9 Ibid.
10 Ibid.
11 Ibid.
12 Ibid.
13 Ibid.
14 Ibid.

on urban, underutilized properties. In other ways, this shift in focus is also reflective of a change in legislative strategy on the part of industry representatives—to achieve their economic goals, they reframed their positions to somewhat align with pro-expansion coalitions, ensuring that they benefited from CERCLA's growth, rather than resisting it outright, as they had in the 1980s and 1990s.

Ultimately, the 2002 Brownfields Initiative illustrates how industry groups strategically adapted their rhetoric to align with the expansionist coalition's redevelopment goals, shifting from opposition to cooperation. By framing CERCLA expansions as economically beneficial, these groups sustained the program's growth while securing liability protections that mitigated personal financial risk.

Modern Revival and Climate Concerns (2020–Present): The Inflation Reduction Act of 2022

Though the early 2000s did not see many significant expansions in the Superfund Act's power, the Inflation Reduction Act of 2022 marked a resurgence in CERCLA's political relevance. Specifically, the IRA allocated $3.5 billion for the cleanup of hazardous waste sites on the EPA's NPL.[15] Furthermore, the IRA reinstated the excise tax that Congress allowed to expire in 1995, reviving one of the foundational principles of the original Superfund Act: "polluter pays."[16]

In 2020, the House Energy and Commerce Subcommittee on Environment and Climate Change held a hearing on cleanups and climate resilience. Findings from the hearing informed the inclusion of the Superfund clause in the 2022 IRA. Four key witnesses presented, representing three interests: the federal bureaucracy, environmental advocates, and industry advocates.

Alfredo Gomez, the director of Natural Resources and Environment at the Government Accountability Office, focused his testimony on the risks posed by climate change to Superfund sites.[17] Gomez specifically highlighted the EPA's need for increased guidance on climate risk integration, given that 60 percent of non-federal Superfund sites are in areas vulnerable to climate change–induced risks.[18] This represented a shift in the federal government's focus from justifying the EPA's authority to a new focus on contemporary issues such as climate change.

The environmental advocacy and justice coalition was represented by Amanda Goodin, an attorney for Earth Justice, and Amy Dinn, a managing attorney at Lone Star Legal Aid's Environmental Justice team. Both emphasized the risks posed by climate change and called for polluters to be held accountable for their actions via tax.[19] Dinn, in particular, also addressed Superfund sites' disproportionate impact on low-income and minority communities.[20] The consideration of Superfund sites in a more intersectional manner was novel and reflects increased conversation around such issues in the US political climate. This renewed push for CERCLA funding highlights the persistence of environmental advocates over the years, cementing their role as a durable, pro-expansion coalition.

Finally, Laurie Matthews, legal counsel representing the Superfund Settlements Project, testified on behalf of the industry and responsible parties coalition. Matthews' testimony focused on opposing additional financial assurance requirements, claiming that current regulations were sufficient.[21] Matthews also presented new mandates and costs as potentially inefficient and supported a streamlined version of the existing Superfund program.[22] This does not represent a significant departure from what other industry representatives argued for in past hearings in the twentieth century. But it was markedly less tepid than the opposition displayed by industry interests in the early 2000s. Indeed, under political and financial pressure, industry interests were far less focused on cooperating with other coalitions to achieve bipartisan legislation.

In conclusion, the 2022 IRA hearings demonstrated a return to entrenched opposition from industry groups, reflecting concerns over renewed tax burdens. Yet, environmental coalitions' persistent advocacy—bolstered by fears of climate change and desires for environmental justice—proved decisive in sustaining CERCLA's relevance and securing a renewal of the "polluter pays" principle.

Overall Trends

The examination of interest group dynamics reveals why CERCLA expanded over time. Federal agencies consistently framed Superfund as critical for public health and corporate accountability. Environmental advocates maintained pressure for expansion by continuously expressing their concerns, including pollution and climate justice. While initially strong, industry opposition shifted its approach over time, seeking reforms, liability protections, and redevelopment incentives rather than outright repeal.

15 Environmental Protection Agency, "Superfund Accomplishments Quarterly Report - Fiscal Year 2024," US EPA, September 19, 2024, https://www.epa.gov/superfund/superfund-accomplishments-quarterly-report-fiscal-year-2024.
16 Ibid.
17 U.S. House of Representatives. Committee on Energy and Commerce. Superfund Oversight Hearing: Testimony of Hon. Fred Upton, Hon. Ann Wagner, and Mathy Stanislaus. 114th Congress, 2nd Session, July 13, 2016. Washington: U.S. Government Printing Office, 2017.
18 Ibid.
19 Ibid.
20 Ibid.
21 Ibid.
22 Ibid.

This ultimately had varied outcomes, from the expiration of the tax to a consensus on Brownfields to a total failure for industry with the IRA. This push and pull between opposing groups moderated CERCLA's expansion and ensured its institutionalization.

The federal bureaucracy acted as a stabilizing force over the years. Agencies like the EPA and the Department of Justice did not necessarily advocate expanding the Superfund's powers. Instead, they consistently defended the status quo, presenting arguments in defense of CERCLA's liability schemes and frameworks and justifying the necessity of Superfund by highlighting public health concerns and the desire to hold polluters accountable. However, this does not imply that federal officials maintained a consistent position on Superfund. Indeed, their testimony evolved, reflecting contemporary political trends and issues, such as the shift in becoming more open to the delegation of powers to the state level between 1995 and 2002 or the shift in focus from public health concerns to worries about how climate change would affect the Superfund sites.

State and local governments, too, remained relatively consistent in their priorities—their primary goals were greater autonomy, increased federal funding, and reduced regulatory burdens. This is not to say that state interests didn't adapt over time; indeed, as redevelopment became a focus during the Brownfield Initiative hearings in the early 2000s, state representatives' testimonies shifted to highlight the local economic benefits of the proposed amendments. This coalition, however, was notably absent in the 2022 hearings, suggesting a diminished role in shaping federal-level Superfund policies in the modern climate-focused era. This could be attributed to the fact that their testimony seemingly had very minor effects on legislation.

Industry groups and their representatives initially concentrated on reforming CERCLA's liability schemes and reducing litigatory burdens in the 1980s and 1990s. But, their position evolved after the Superfund excise tax on chemical companies expired in 1995. By 2002, after achieving their

	1985	**1995**	**2002**	**2022**
Federal	Defends liability schemes; emphasizes efficiency, public health, and industry compliance	Justifies federal government authority, acknowledges need for greater efficiency and cost-reduction, advocates for the "polluter pays" principle	Does not desire Superfund overhaul, but supports the Brownfields Amendment, defends the EPA, supports greater delegation of authority to the state/local levels	Highlights risks to Superfund sites presented by climate change, calls for greater funding to the EPA
State & Local	Highlights local success, desire more local authority	Desires more local authority, criticize liability schemes and complexity of laws	Desires more local authority, greater funding, and more relaxed liability schemes	N/A
Industry Interests	Criticizes liability schemes, push for voluntary clean up incentives	Criticizes liability schemes, push for voluntary cleanup incentives, desire better cost-sharing schemes to reduce corporate taxes	Emphasizes the redevelopment and urban renewal opportunities for economic growth, no mention of liability schemes	Criticizes proposed changes, claim that increased regulation will mean unnecessary bureaucracy
Environmental Advocates	"Polluter pays," focus on public health concerns	Focus on public health concerns, legislation should be more stringent, "polluter pays"	Strong support for Brownfields amendment, see it as balanced and fair	Worry about climate change, "polluters pay," emphasize social justice angle
Others	N/A	Academics: greater research needs to be done to create more explicit cleanup standards	N/A	N/A

goals, industrial advocates shifted to be less inflammatory, emphasizing their commitment to economic redevelopment through initiatives such as the Brownfields Amendments, which created more explicit liability protections. This shift reflects an adaptive strategy: rather than outright opposing CERCLA's expansion, the industry interests were just as interested in stasis as the federal government, and reframed their goals to align with broader economic and redevelopment objectives. However, their strategy again shifted in 2020, when it became clear that the corporate excise taxes might be reinstated. At that point, industry interest emerged again with strong critiques of additional regulatory mandates.

Environmental advocacy groups remained broadly consistent in their demands and desires. Advocacy for a more stringent "polluter pays" framework and robust public health protections remained consistent in their testimonies since 1985. The most significant way that environmental advocacy groups have evolved in their positioning is how they have grown in considering broader societal conversations around equity and justice. Such considerations are reflected in their arguments for why amendments expanding the Superfund Act were necessary. Initially, they primarily highlighted the public health risks posed by Superfund sites, and by 2020, they also highlighted how such risks disproportionately affect specific marginalized communities.

IV. Conclusions

The expansion of CERCLA over the past forty-four years is a compelling case study of legislative persistence and compromise, albeit a compromise that significantly favored expansionary measures. Ultimately, without opposition groups such as the business and industry interests, CERCLA's expansion may have proceeded much more drastically. In this way, though the Superfund Act has expanded over the years, it has done so in a much more moderate manner than it might have given the absence of opposition.

First and foremost, environmental advocacy groups worked together to form pro-expansion coalitions, consistently framing CERCLA as essential to safeguarding public health standards and environmental protection. Their persistence over several decades, plus increased societal interest in preventing pollution and pursuing environmental justice, has kept the Superfund Act politically relevant. Secondly, federal agencies—primarily the EPA—have done substantial work defending CERCLA's liability and enforcement frameworks while adapting their priorities over the years to address emerging environmental challenges and newly prominent concerns, such as climate change or renewed focus on urban redevelopment. Finally, over the years, other groups developed vested interests in sustaining or expanding CERCLA via funding or increased clarity in regulation. Indeed, the pro-expansion coalition added and lost members over the years: environmental advocates, federal officials, state and local government, and, at times, the very same business interests that opposed expansion in previous years. This coalition has proven durable and adaptable, navigating shifting political and social dynamics to sustain the Superfund program's growth. At the same time, the opposing business interests coalition demonstrates an equal ability to adapt, reframing their goals where necessary to achieve desirable outcomes.

The expansion of CERCLA holds important implications for understanding regulatory policy and interest group dynamics. While opposition from industry interests remained consistent, their strategies shifted over time from outright resistance to a concerted effort to influence Superfund's direction through cooperation to a return to outright resistance. Despite a consistent commitment to one set of ideals, they might adapt their strategies to extract concessions from other parties, shape policy outcomes in ways they deem more meaningful, or, perhaps most importantly, reduce perceived regulatory burdens when their method of opposition proves ineffective. Indeed, opposition groups can influence policymaking without dismantling legislation's fundamental framework. Further, the Superfund case study demonstrates that coalitions can sustain crisis-driven policies far beyond an initial focusing event if they consistently advocate for the legislation.

With that said, this paper's analysis is limited because while congressional hearings are one method of observing interest group dynamics, one cannot analyze these transcripts in isolation from informal lobbying procedures, closed-door political negotiations, or public opinion. That said, such parts of the legislation development process are much more difficult, simply because such resources are not readily available to the public. Therefore, future research could explore how media framing and grassroots advocacy beyond formal legislative settings contributed to Superfund's expansion. In addition, a comparative analysis of the Superfund program with other environmental or regulatory programs could reveal if CERCLA's expansion reflects a broader policy pattern or is unique in its legislative trajectory.

In conclusion, CERCLA's trajectory offers a blueprint for understanding how modern environmental legislation can adapt its frameworks to novel challenges.

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